Alabama Rules of Criminal Procedure

Rule 15. Preparation for trial; pleadings and motions.

Rule 15.3. Time of making motions.

(a) PRE-TRIAL MOTIONS. A motion under Rule 15.2 must be made:

(1) In circuit court, at or before arraignment or by such later date as may be set by the court; and

(2) In district court or municipal court, at the time of or before entering a plea.

(b) EXTENSION OR LIMITATION OF TIME. For good cause shown, the court may extend or limit the time of filing such motions.

Committee Comments

If counsel is first appointed at arraignment, the court, if necessary, may continue the time for filing the plea until counsel has had time to prepare all necessary motions. The provision for time limitations is an attempt to accommodate local rules of practice in the various circuits.